

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO S.B. 1429
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 41-1502, Arizona Revised Statutes, is amended to
3 read:

4 41-1502. Arizona commerce authority; board of directors;
5 conduct of office; audit

6 A. The Arizona commerce authority is established. The mission of
7 the authority is to provide private sector leadership in growing and
8 diversifying the economy of this state, creating high quality employment
9 in this state through expansion, attraction and retention of businesses
10 and marketing this state for the purpose of expansion, attraction and
11 retention of businesses.

12 B. The authority is governed by a board of directors consisting of:

13 1. The governor, who serves as chairperson.

14 2. The chief executive officer.

15 3. Seventeen private sector business leaders who are chief
16 executive officers of private, for-profit enterprises. None of these
17 members may be an elected official of any government entity. These
18 members must be appointed from geographically diverse areas of this state
19 and not all from the same county. These members shall serve staggered
20 three-year terms of office beginning and ending on the third Monday in
21 January. These members shall be appointed as follows:

22 (a) Nine members who are appointed by the governor.

23 (b) Four members who are appointed by the president of the senate.

24 (c) Four members who are appointed by the speaker of the house of
25 representatives.

26 4. The following as ex officio members without the power to vote:

27 (a) The president of the senate OR THE PRESIDENT'S DESIGNEE.

28 (b) The speaker of the house of representatives OR THE SPEAKER'S
29 DESIGNEE.

1 (c) The president of the Arizona board of regents.
2 ~~[(d)] THE CHAIRPERSON OF THE SENATE FINANCE COMMITTEE, OR ITS~~
3 ~~SUCCESSOR COMMITTEE, OR THE CHAIRPERSON'S DESIGNEE.~~
4 ~~[(e)] THE CHAIRPERSON OF THE HOUSE OF REPRESENTATIVES INTERNATIONAL~~
5 ~~TRADE COMMITTEE, OR ITS SUCCESSOR COMMITTEE, OR THE CHAIRPERSON'S~~
6 ~~DESIGNEE.]~~
7 [(d)] [(f)] The president of each state university under the
8 jurisdiction of the Arizona board of regents.
9 [(e)] [(g)] One president of a community college who is appointed
10 by a statewide organization of community college presidents.
11 [(f)] [(h)] The chairperson of the governor's council on small
12 business, or its successor.
13 [(g)] [(i)] The chairperson of the workforce Arizona council
14 established by executive order pursuant to section 41-5401.
15 [(h)] [(j)] One member of the rural business development advisory
16 council established by section 41-1505 who is appointed by the governor.
17 [(i)] [(k)] The president of a statewide organization of
18 incorporated cities and towns who is appointed by the governor.
19 [(j)] [(l)] The president of a statewide organization of county
20 boards of supervisors who is appointed by the governor.
21 C. For members who are appointed by the governor pursuant to
22 subsection B of this section, before appointment by the governor, a
23 prospective member of the board of directors shall submit a full set of
24 fingerprints to the governor for the purpose of obtaining a state and
25 federal criminal records check pursuant to section 41-1750 and Public Law
26 92-544. The department of public safety may exchange this fingerprint
27 data with the federal bureau of investigation.
28 D. The following shall serve as technical advisors to the board to
29 enhance collaboration among state agencies to meet infrastructure needs
30 and facilitate growth opportunities throughout this state:
31 1. The director of environmental quality.
32 2. The state land commissioner.
33 3. The director of the department of revenue.
34 4. The director of the office of tourism.
35 5. The director of the department of transportation.
36 6. The director of water resources.
37 7. The director of the department of insurance and financial
38 institutions.
39 8. The director of the Arizona-Mexico commission in the governor's
40 office.
41 9. The director of the office of economic opportunity.
42 10. An attorney who is appointed jointly by the president of the
43 senate and the speaker of the house of representatives and who has
44 experience litigating constitutional cases involving article IX, section 7
45 of the Arizona Constitution.
46 E. The governor shall appoint a cochairperson of the board of
47 directors from among the voting members. The board may establish an

1 executive committee consisting of the chairperson, the cochairperson, the
2 chief executive officer and additional voting members of the board elected
3 by the board. The chairperson may appoint subcommittees as necessary.

4 F. The board may request assistance from representatives of other
5 state agencies to maximize economic development opportunities by
6 leveraging their access to strategic assets and planning processes.

7 G. Board members serve without compensation but are eligible for
8 reimbursement of expenses pursuant to section 41-1504, subsection E,
9 paragraph 1.

10 H. A majority of the voting members, which must include the
11 chairperson and the chief executive officer, constitute a quorum for the
12 purpose of an official meeting for conducting business. An affirmative
13 vote of a majority of the members present at an official meeting is
14 sufficient for any action to be taken.

15 I. The board shall keep and maintain a complete and accurate record
16 of all of its proceedings. Public access to the board's records is
17 subject to section 41-1504, subsection M. The public portion of board
18 meetings shall be recorded. These recordings shall be posted on the
19 authority's website within three business days after the meeting and shall
20 remain on the website pursuant to section 38-431.01, subsection K.

21 J. The board ~~of directors~~, executive committee, subcommittees and
22 advisory councils are subject to title 38, chapter 3, article 3.1,
23 relating to public meetings, except as follows:

24 1. In addition to section 38-431.03, the board, executive committee
25 and subcommittees may meet in executive session for discussion about
26 potential business development opportunities and strategies that, if made
27 public, could potentially harm the applicant's, the potential applicant's
28 or this state's competitive position.

29 2. Social and travel events related to the expansion, attraction
30 and retention of businesses are not public meetings if no legal action
31 involving a final vote or decision is taken.

32 3. Activities and events held in public for the purpose of
33 announcing the expansion, attraction and retention of projects are not
34 public meetings.

35 K. The board and the officers and employees of the authority are
36 subject to title 38, chapter 3, article 8, relating to conflicts of
37 interest.

38 L. The board of directors shall adopt written policies, procedures
39 and guidelines for standards of conduct, including a gift policy, for
40 members of the board and for officers and employees of the authority.

41 M. The compensation of all officers and employees is considered a
42 public record pursuant to title 39, chapter 1.

43 N. The authority shall operate on the state fiscal year. The board
44 shall cause an annual audit to be conducted on or before October 31 of
45 each of the authority's public funds established by this chapter by an
46 independent certified public accountant. The board shall immediately file
47 a certified copy of the audit with the auditor general. The auditor

1 general may make such further audits and examinations as necessary and may
2 take appropriate action relating to the audit or examination pursuant to
3 chapter 7, article 10.1 of this title. If the auditor general takes no
4 further action within thirty days after the audit is filed, the audit is
5 considered to be sufficient.

6 O. All state agencies shall cooperate with the authority and make
7 available data pertaining to the functions of the authority as requested
8 by the authority.

9 P. The authority may not have more than one hundred full-time
10 employees, excluding any full-time employees that are funded with monies
11 other than state monies.

12 Enroll and engross to conform

13 Amend title to conform

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